

CONTRACT OF SECURITY SERVICES

KNOW ALL MEN BE THESE PRESENTS

This contract of Security Services executed and entered into by and between

The **FOREST PRODUCTS RESEARCH AND DEVELOPMENT INSTITUTE**, with principal office at Forestry Campus, College, Laguna, represented by its OIC-Director, **DR. RICO J. CABANGON**, hereinafter referred to as FPRDI.

-and-

DELTA MAROON SECURITY AGENCY CORP. a corporation duly organized and existing under the laws of the Philippines with principal office at 0188 Jasmin St. Rodriguez Village, Brgy. Lawa, Calamba City, Laguna, represented herein by President, **MS. LIZA S. CASTILLO** referred hereto as the AGENCY.

-WITNESSETH-

WHEREAS, the FPRDI is in need of the services of the AGENCY for the purpose of securing the protection and safety of the FPRDI properties from robbery, theft, arson or any other unlawful acts whatsoever; the protection of its officers, employees, visitors/guests from assault, harassment, threat or intimidation, including the maintenance of peace and order and the implementation of the rules and regulations relative to the security and safety thereof;

WHEREAS, the AGENCY has agreed, to which FPRDI has accepted, to provide the required security services needed by the latter.

NOW, THEREFORE, in consideration of the premises and of the mutual covenants and stipulations hereafter set forth the parties hereto have agreed as follows:

1. The AGENCY shall provide the FPRDI during the lifetime of this contract with ten (10) security guards who are efficient, licensed, uniformed, bonded and armed rendering services for 8 hours duty daily, including Saturdays, Sundays and Holidays;
2. The AGENCY shall provide at its own expense the necessary and sufficient equipment for security services such as, but not limited to, licensed firearms and ammunitions, communication equipment, flashlights, metal detectors & night sticks, including CCTV Camera and accessories;
3. The AGENCY warrants that every security guard assigned by it under this contract possesses the following qualifications:
 - 3.1 at least high school graduate;
 - 3.2 physically and mentally fit;
 - 3.3 Good moral character;
 - 3.4 Must not have been convicted of a crime or offense involving moral turpitude;
 - 3.5 have been screened, passed and cleared by the PNP and the NBI. The Agency shall provide FPRDI with corresponding certification as to the qualifications of assigned security guard; and
 - 3.6 With valid License to Exercise Security Profession (LESP).
4. The AGENCY shall provide the FPRDI copy of the duly signed employment contract of the Security Guards to be assigned;

5. Under no circumstances should the agency deploy two (2) Security Guards who are related either by affinity or consanguinity up to fourth (4th) Civil Degree, at the same shift or time schedule;
6. The Agency shall not assign a Security Guard to two consecutive shifts under any normal circumstances except when:

Emergencies: In the event of a natural disaster, fire, active threat, or other emergency requiring immediate and continuous security presence, the Agency may assign a Security Guard to a consecutive shift, provided that:

- 6.1 The emergency necessitates the continued presence of the Security Guard beyond their scheduled shift.
- 6.2 The Security Guard has been notified of the emergency and has consented to work the additional shift, if practicable under the circumstances.
- 6.3 The Agency has documented the nature of the emergency and the reasons for assigning the consecutive shift in writing.

Unforeseen guard-on-duty or staffing Shortages: In the event of unforeseen circumstances or guard-on-duty shortages beyond the Agency's reasonable control that create a critical gap in security coverage, the Agency may assign a Security Guard to a consecutive shift, provided that:

- a) All reasonable efforts have been made to secure additional Guards to fill the gap.
 - b) The Guard has had a minimum of eight (8) consecutive hours of rest between shifts.
 - c) The duration of the consecutive shift does not exceed eight (8) hours.
 - d) The Agency has documented the reasons for the staffing shortage.
7. The FPRDI shall provide quarters for the security guards provided that no visitors or relatives at all times shall sleep and or dwell in the said quarters;
 8. The AGENCY and its security guards assigned to FPRDI shall courteously perform among others the following functions:

- 8.1 Record on a separate log sheet or logbook the arrival and departure time, name of company, its driver, plate number of vehicle and the loads, if any with delivery receipt (DR) number;
- 8.2 Conduct visual searches or when legally appropriate inspect and check all outgoing vehicles of contractors, suppliers, deliveries and pull-outs;
- 8.3 Check the authenticity and applicability of the accompanying article pass used, if there is any;
- 8.4 Record the time of departure and arrival of FPRDI vehicles in a logbook, and receive/get copy of the original Trip Ticket with the attached duplicate receipt of gas withdrawal slip;
- 8.5 Record on separate log sheet or logbook the FPRDI owned equipment/material, the quantity, description, condition and time of return without prejudice to any form the Property, Supply and Procurement Section may require;
- 8.6 Implement the "NO DEADLY WEAPON ALLOWED", "NO SMOKING", "NO GAMBLING" and "NO DRINKING OF LIQUOR" regulations within the premises and other regulations the Director may impose;
- 8.7 Conduct inspection and searches of bags and personal belongings of incoming/outgoing suspicious looking people/visitors. Require visitors to register in the logbook at the Public Assistance Desk;

- 8.8 Conduct inspection of all rooms/offices after 6:00 PM and record all rooms left unlocked and lights and airconditioning units switch on by occupants for the purpose of notifying the said occupants and FPRDI management;
- 8.9 Conduct from time-to-time foot patrol within FPRDI's premises and all areas of its responsibilities noting down any violation of the Institute's policy, rules/regulations and any untoward incident that has transpired during his inspection of the said areas;
- 8.10 Escort authorized scrap collectors during scrap collection and buyers during withdrawal periods;
- 8.11 Regulate vehicles traffic in the immediate vicinity leading to and in the Institute's compound at all times;
- 8.12 Control loitering of unauthorized persons within the Institute's premises;
- 8.13 Inspect the assigned area and secure all FPRDI properties as well as those of its clients against theft and pilferage;
- 8.14 Take telephone calls assigned at their post;
- 8.15 Prepare, file and submit report to FPRDI, thru its duly authorized representative, all documents related to activities and incidents during tour of duty;
- 8.16 Put on and off perimeter lights and facilities, including office equipment not in use particularly during night time, after office hours, and during Saturdays, Sundays and Holidays;
- 8.17 Refer/consult FPRDI on security matters which are not covered by any instructions;
- 8.18 In no case shall any guard leave or abandon his post unless properly relieved;
- 8.19 Observe proper turnover of activities, duties and responsibilities to the incoming reliever;
- 8.20 Maintain cleanliness and orderliness to the assigned quarters and are not allowed to operate electronic and mechanical gadgets which are not necessary in the performance of their duties;

9. The AGENCY Security Supervisor shall perform the following duties and responsibilities:

- 9.1 Coordinate with FPRDI or its duly authorized representative for instructions;
- 9.2 Act immediately on security problems needing priority action and solution;
- 9.3 Bring to the attention of the FPRDI all security matters not covered by the instructions;
- 9.4 Supervise the whole security force;
- 9.5 Prepare weekly summary of activities of the security force and submit the same to the FPRDI;
- 9.6 Conduct preliminary investigation on any untoward incident and immediately submit report to FPRDI involving security matters transpiring within the premises;
- 9.7 Make an immediate written report on any violation of the Institute's policies, rules and regulations concerning security matters and submit the same to the FPRDI Director, or his authorized representative, within 24 hours after the violation has been committed;
- 9.8 Make a written report upon discovery of any flaw in the security system recommend remedial measures for the improvement of the security system;
- 9.9 In the absence of the roving guard, he will perform the function of the same;
- 9.10 He will be responsible for the discipline and conduct of his men under his supervision;
- 9.11 Conduct a meeting at least once a month or upon request by the FPRDI, with the presence of any or all of the following officials: Director, Chief of Finance and Administrative Division, Chief of General Services, or their designated representatives;

- 9.12 Observe the turnover of duties and responsibilities between the incoming and outgoing guards;
- 9.13 Does other things that may be instructed to him from time to time by the Director or his duly authorized representative;
10. In case of isolated fire, security guards shall put out the fire themselves if there are no members of the fire brigade present and shall act as follows:
- 10.1 In case of big uncontrolled fire, the security guard shall call the assistance of, but not limited to, the Bureau of Fire Protection, Los Baños, the Barangay Batong Malake Fire Brigade and the IRRI Fire Brigade;
- 10.2 Clear the route for passage of firefighting trucks and equipment;
- 10.3 Keep all persons not involved in the firefighting operations away from the area of the fire;
- 10.4 Secure the gate against entry of outsiders other than the fire department and police authority;
11. The FPRDI reserves the right to increase or decrease the number of guards or anyone of the existing guards as the exigencies of the operation may require. However, such increase or replacement becomes effective only upon receipt of written consent of the AGENCY. The AGENCY, shall be granted 24-hour allowance after consent is given;
12. All security guards assigned by the AGENCY under this agreement are exclusively the employees of the AGENCY and the latter shall in connection with such employment relation with the security guards, comply with all labor laws and such other related laws bearing on employment including minimum wage, Workmen's Compensation, Employer's Liability, Separation Pay, SSS Coverage, Philhealth, Pag-IBIG Contributions, Income Tax Payments, Retirement Benefits, and the like, and the AGENCY shall hold the FPRDI free from any claim of such security guards relative thereto;
13. The AGENCY shall have full control and supervision over the security guards to be assigned under this Contract as well as to the manner of performance of their duties. However, the AGENCY binds itself to the implementation of any and all rules and regulations or directives that the FPRDI may issue concerning the conduct of said security guards that will redound to the fulfillment of the objectives of this Contract such that the FPRDI or any of its authorized ranking officials may issue direct orders of compliance by the security guards;
14. The AGENCY hereby assumes responsibilities of theft, robbery and other unlawful acts towards FPRDI properties properly endorsed when such acts are committed and/or omitted due to the negligence and dereliction of duties of the guards. Provided, however, that the AGENCY is notified within 24 hours after loss or damage occurred or discovered;
15. The AGENCY will not be responsible for losses or damages due to force majeure, fortuitous events, or Act of God or acts beyond human capacity to control and will entertain claims for damages and/or losses made only within 24 hours after the occurrence or discovery of such damages or losses due to the negligence and dereliction of duties of the AGENCY guards;
16. The AGENCY shall within ten (10) days from the signing of the Contract furnish the FPRDI with a performance bond in any of the following form:
- 16.1 a) Cash or Cashier's/ Manager's check issued by a Universal or Commercial bank. **FIVE PERCENT (5%) of the Contract Price.**
- b) Bank draft/guarantee or irrevocable letter of credit issued by a Universal or Commercial bank-**FIVE PERCENT (5%) of the Contract Price.**

16.2 a) Surety Bond, callable on demand – **THIRTY PERCENT (30%) of the Contract Price**

The Performance Bond, whether Bank Guarantee or Surety Bond, shall be renewable annually. It shall be issued by a reputable company conditioned to answer any claim which the FPRDI may have against the AGENCY arising from this Contract. The FPRDI reserves the right to terminate the Contract upon failure of the AGENCY to file the bond within thirty (30) days notice;

17. For and in consideration of the services to be rendered by the AGENCY, the FPRDI, shall during the life of the Contract, pay the AGENCY the total amount of **TWO MILLION NINE HUNDRED SIX THOUSAND FOUR HUNDRED FORTY-SIX PESOS AND 44/100 (PhP 2,906,446.44)** per annum of Philippine Currency for eight (8) hours duty daily each, including Saturday and Sunday, and Holidays, payable every 15th and end of the month, upon submission of its Statement of Account for the period covered and shall be accompanied by Proof of Payment of salaries to its guards, Retirement Benefit, SSS, PhilHealth and Pag-IBIG contributions of personnel for previous month.
18. This Contract shall be effective January 1, 2024 to December 31, 2024 and shall continue to have force and effect until either party terminates the same upon written notice to the other at least thirty (30) days in advance without prejudice to the rights and obligations of the parties that have accrued prior to such termination;

IN WITNESS WHEREOF, the parties have hereunto affixed their signature on the date and place first above mentioned.

**FOREST PRODUCTS RESEARCH
AND DEVELOPMENT INSTITUTE**

By:


RICO J. CABANGON
OIC, Office of the Director

**DELTA MAROON SECURITY AGENCY
CORPORATION**

By:


LISA S. CASTILLO
President

SIGNED IN THE PRESENCE OF:

ARENE A. QUIAMBAO
Chief Administrative Officer


BENEDICT G. GERINGUILLO

ACKNOWLEDGEMENT

Republic of the Philippines)
Province of _____) S.S.
Municipality of **CALAMBA CITY**)

BEFORE ME, this ____ day of JAN 05 2024 personally appeared:

Dr. RICO J. CABANGON with Passport No. S0032550A issued at DFA, Manila on 20 November 2023 and **Ms. LISA S. CASTILLO** with Community Tax Certificate No.

_____ issued at _____ on _____ known to me to be the same persons who executed the foregoing instrument and who acknowledge to me that the same is their free and voluntarily act and deed and of the offices that they represent.

I further certify that the foregoing **CONTRACT FOR SECURITY SERVICES FOR CY 2024** consists of six (6) pages including this page on which the acknowledgement is written, and the parties hereto and their witnesses have affixed their signatures on the space provided and on the margin of every page hereof.

WITNESS MY HAND SEAL on the date and place first above written.

NOTARY PUBLIC

ATTY. ROLANDO H. CHIONG, JR.

Until: _____ Notary Public

PTR No.: Until December 31, 2024

PTR Nos. ~~027004~~, 01-02-2024 Calamba City

Red. No. 01958, IBP OR No. 180754, 12-09-2022

Chiong Law Office, Calamba City, Philippines

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